

COLLECTION · BUYERS

Writing a Strong Promise to Purchase

*Price, conditions, deadlines and offer strategy —
without trapping yourself*

READ BEFORE YOU BEGIN

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Writing a Strong Promise to Purchase

Price, conditions, deadlines and offer strategy — without trapping yourself

The promise to purchase is the moment where everything is decided. Well built, it protects your interests, reassures the seller and gives you legitimate ways out. Poorly put together, it can commit you beyond what you intended... or make you lose the property.

This guide breaks down every part of the offer: the price, the inclusions, the conditions that protect you, the deadlines, the deposit, and the strategy according to the type of market.

Each chapter ends with a lined “My notes” page to prepare YOUR offer with your broker.

The promise to purchase is the document that turns your interest into a commitment. Well written, it protects you; rushed, it exposes you. This guide breaks down its legal scope, the conditions that protect you, how to set your price and how to run the negotiation.

Your broker drafts and validates these regulated documents: this guide makes you an active, informed participant at every clause.

CHAPTER

What a promise to purchase (really) is

Understanding the legal scope of your offer.

The promise to purchase is a binding document: as soon as the seller accepts it, a contract is formed. So you never make an offer “just to see”. It sets out the price, the goods included and excluded, the possession date, any deposit, and above all the conditions that must be met for the sale to go through.

In Quebec, these documents are standardized and regulated; your broker fills them out with you and explains each clause. Take the time to understand before signing.

Never write a promise “just to see”: as soon as the seller accepts it, you're committed. Every element counts — price, inclusions and exclusions, possession date, conditions. A well-made promise protects your interests as much as it formalizes your offer.

EMILIE'S TIP

Never write a number in a promise to purchase that you wouldn't be ready to honour. An accepted offer is a contract, not a mere expression of interest.

CHAPTER

The conditions that protect you

Inserting the right suspensive conditions.

Conditions are your legitimate ways out. The most common:

- Satisfactory inspection by a recognized professional.
- Obtaining the final mortgage financing.
- Review of the documents (location certificate, seller's declaration, co-ownership documents).
- Sometimes: the prior sale of your current property.

Each condition comes with a deadline. If a condition isn't fulfilled in time and to your satisfaction, you can renegotiate or withdraw without penalty — that's the whole point.

Your conditions are your legitimate ways out: satisfactory inspection, obtaining financing, review of the documents (especially in co-ownership). Resisting the temptation to drop them “to win” in a tight market is what protects you from a regretted purchase. A way out is not a weakness.

EMILIE'S TIP

In a tight market, there's a temptation to drop conditions to “win”. Dropping the inspection or financing can expose you to enormous risk. Always discuss the price of that bet with your broker before taking it.

CHAPTER

Setting the right offer price

Making an offer from data, according to the market.

Your broker prepares a comparative market analysis: the recent sales of similar properties in the area. It's the rational basis for your price, far more reliable than the asking price or emotion.

Adapting to the market

- Buyer's market (abundant supply): you have leverage, you can offer below the asking price and keep all your conditions.
- Seller's market (scarcity): offers are competitive; the price and condition strategy has to be more refined.
- Always: a maximum limit set with a cool head, the one you're comfortable with.

Set your price from a comparative market analysis (recent similar sales), not from a feeling. It's your rational basis for offering without overpaying or offending the seller. In a balanced market, an offer that's too low can simply close the door to negotiation.

EMILIE'S TIP

The asking price is not the value: it's the seller's marketing strategy. Offer on the basis of comparables, not on the tag.

CHAPTER

Deadlines, deposit and counter-offers

Mastering the mechanics and the negotiation.

Your offer has a validity period (the seller must reply before it expires). A deposit (paid in trust) can accompany the offer to show you're serious; it's applied to the price at closing.

The counter-offer dance

The seller can accept, refuse, or make a counter-offer (price, date, conditions). Each counter-offer relaunches the negotiation. Stay focused on your limit and on the whole package (price AND conditions AND dates), not just the amount.

Master the mechanics: the offer's validity period, the deposit in trust (a token of seriousness), and the game of counter-offers. Each counter-offer reopens the negotiation: keep your ceiling in mind and respond on the facts, not under the pressure of the deadline.

EMILIE'S TIP

A possession date that suits the seller can be worth as much as a better price. Ask your broker what matters to the other party — you negotiate better what you understand.

CHAPTER

Multiple offers: keeping a cool head

Deciding in advance so you don't overbid on emotion.

In a multiple-offer situation, several buyers submit at the same time, often without knowing the other amounts. Emotion pushes you to exceed your limit “just this once”.

Your anti-panic plan

- Set your absolute ceiling price BEFORE submitting, and write it down.
- Present a “clean” offer: reasonable conditions, solid financing, suitable dates.
- Accept that there will be other properties: none justifies breaking your plan.

In multiple offers, decide in advance on your maximum amount AND the conditions you refuse to give up. A clean, pre-approved offer with flexible timelines often reassures as much as one more dollar. Losing a property is survivable; overpaying follows you for years.

EMILIE'S TIP

*The house you land by wildly exceeding your budget sometimes becomes a burden.
Losing a bidding war often means protecting yourself from a bad decision.*

IN PRACTICE

Action plan

Your next steps, concretely.

This week

1. Have a comparative market analysis prepared for the target property.
2. Decide on my conditions and my ceiling price.

Within 30 days

1. Structure the offer with my broker (price, conditions, deadlines, deposit).
2. Prepare my strategy in case of a counter-offer or multiple offers.

Next

1. Submit a solid offer and stay true to my limit.

Before submitting my offer

1. Get a recent comparative market analysis and set my ceiling price in writing.
2. List my non-negotiable conditions (inspection, financing, documents).

REFERENCES

Resources & glossary

- Promise to purchase: a binding offer setting out price, conditions, deadlines.
 - Suspensive condition: a clause that must be met for the sale to go through.
 - Comparative market analysis: recent similar sales used to set the price.
 - Deposit in trust: a sum paid with the offer, applied to the price at closing.
 - Counter-offer: the seller's reply modifying the terms of the offer.
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- Promise to purchase: an offer that becomes a contract as soon as the seller accepts.
 - Suspensive condition: a clause the validity of the sale depends on (inspection, financing).
 - Deposit in trust: a sum deposited as a token of seriousness, in a protected account.
 - Counter-offer: a reply modifying a term of the initial offer.
 - Possession date: the agreed date for handing over the keys.

GOING FURTHER

Quiz — test your knowledge

1. An accepted promise to purchase is:

- A) A simple intention
- B) A binding contract
- C) Worthless
- D) A receipt

2. Suspensive conditions are there to:

- A) Raise the price
- B) Give you legitimate ways out
- C) Pay the notary
- D) Decorate the offer

3. Dropping the inspection condition in a tight market:

- A) Is risk-free
- B) Can expose you to significant risk
- C) Is mandatory
- D) Lowers the price

4. The right offer price rests on:

- A) The asking price
- B) A comparative analysis of recent sales
- C) Emotion
- D) Chance

5. The asking price is:

- A) The exact value
- B) The seller's marketing strategy
- C) Set by law
- D) Always negotiable downward

6. A deposit in trust:

- A) Is lost in advance
- B) Shows seriousness and is applied to the price at closing
- C) Goes to the broker
- D) Replaces the down payment

7. A counter-offer:

- A) Ends the negotiation
- B) Relaunches the negotiation on price, dates or conditions
- C) Is illegal
- D) Forces you to accept

8. In multiple offers, the key reflex is:

- A) Exceed your budget to win
- B) Set and respect a ceiling price decided with a cool head
- C) Drop all your conditions
- D) Offer at random

Answer key

- 1. **B** — On acceptance, a contract is formed (ch. 1).
- 2. **B** — Inspection, financing, document review (ch. 2).
- 3. **B** — An undetected defect can be very costly (ch. 2).
- 4. **B** — Comparables give the real value (ch. 3).
- 5. **B** — It's not the value, but a strategy (ch. 3).
- 6. **B** — It's applied to the final price (ch. 4).
- 7. **B** — Each counter-offer reopens the discussion (ch. 4).
- 8. **B** — You decide your limit in advance (ch. 5).

Signé PAR Em

*Thank you for reading. May this guide help you
decide with confidence, with all the information
in hand.*

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